

IN THE UNITED STATES DISTRICT COURT
DISTRICT OF SOUTH CAROLINA
CHARLESTON DIVISION

RCVD - USDC - CHAS, SC
2026 MAR 26 PM 4:29

DEBRA NELSON	)	
	)	C.A. No.: 2:25-CV-00405-RMG-MGB
Plaintiff,	)	
	)	
v.	)	
	)	
Curtiss Wright Electro Mechanical Corp.	)	
d/b/a Curtiss-Wright Steam and Air Solutions	)	
STEPHANIE LANIER, and	)	
SHANE SABLITSKY,	)	
	)	
Defendants.	)	

**NOTICE OF ONGOING RETALIATORY ACTS, THIRD-PARTY OBSTRUCTION, AND
WITNESS TAMPERING**

Plaintiff Debra Nelson, appearing pro se, respectfully submits this Notice to update the Court regarding a dramatic escalation in the pattern of retaliation and obstruction that has occurred since the filing of her appellate proceedings on February 17, 2026.

I. PENDENCY OF APPELLATE PROCEEDINGS

A Petition for Writ of Mandamus/Prohibition and Emergency Motion to Stay are currently pending before the Fourth Circuit Court of Appeals (Case No. 26-1061). This Notice is filed to preserve the record regarding ongoing events relevant to this litigation and does not seek to circumvent or prejudice the appellate proceedings currently underway.

II. ESCALATION OF RETALIATORY CONDUCT BY NON-PARTY SUBPOENA RECIPIENTS AND OTHER ACTORS

Since filing the Emergency Motion to Stay on February 17, 2026, and in the weeks since this Court's February 3, 2026 Orders, Plaintiff has experienced a severe escalation in retaliatory conduct by or on behalf of third parties previously subpoenaed in this matter, as well as by other actors. This escalation provides additional factual support for Plaintiff's claims of coordinated obstruction and witness tampering.

A. MICROSOFT CORPORATION - EMAIL ACCOUNT BLOCKED

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On or about March 24, 2026, Microsoft Corporation blocked Plaintiff's access to her primary Microsoft Outlook/Hotmail email account. This account has been Plaintiff's primary means of electronic communication with this Court, receiving ECF notices, and managing legal correspondence.

RELEVANCE:

- Microsoft was subpoenaed by Plaintiff on October 30, 2025 (see Notice of Issuance of Subpoenas, ECF 126).
- Microsoft previously appeared in this litigation regarding the subpoena.
- The blocking of email access directly interferes with Plaintiff's ability to:
 - Receive ECF notices and court orders.
 - Communicate with the Court and Clerk's Office.
 - Manage legal correspondence and deadlines.

This act represents a prima facie case of retaliation for Plaintiff's exercise of discovery rights under Federal Rule of Civil Procedure 45 and obstruction of access to the courts.

B. UBER TECHNOLOGIES, INC. - FALSE REPORTS AND INCOME DESTRUCTION

Between February 28, 2026, and March 2, 2026, Plaintiff's Uber driver account received three (3) consecutive false reports alleging:

1. Plaintiff was driving under the influence (February 28, 2026).
2. Plaintiff was driving under the influence (March 1, 2026).
3. Plaintiff was driving under the influence (March 2, 2026).

Additionally, on March 2, 2026, a false report was submitted claiming Plaintiff was involved in an automobile accident that never occurred. On March 7, 2026, Plaintiff was contacted regarding an insurance claim for this fictitious accident.

CONSEQUENCES:

- Uber deactivated Plaintiff's driver account. This was Plaintiff's sole source of income.
- Plaintiff has not worked since March 6, 2026, and is subsisting on limited income from loans obtained from friends.
- Plaintiff voluntarily submitted to drug testing on March 9, 2026, and PASSED.
- Plaintiff has never been involved in the alleged accident.

RELEVANCE:

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- The timing (immediately following the filing of the Emergency Motion to Stay).
- The pattern (three consecutive false reports over four days).
- The assertion of DUI allegations despite Plaintiff's sobriety.
- The creation of a fictitious accident and insurance claim.

These facts strongly suggest coordinated witness tampering designed to destroy Plaintiff's financial ability to continue litigating this case, constituting interference with her "lawful employment or livelihood" in violation of 18 U.S.C. § 1513.

C. NAVY FEDERAL CREDIT UNION - ACCOUNT SEIZURE

On March 20, 2026, Navy Federal Credit Union unilaterally reduced Plaintiff's checking account balance to zero (0) dollars. The stated purpose was to satisfy a car note payment that was only eight (8) days past its due date.

RELEVANCE:

- Plaintiff clarifies that Navy Federal Credit Union was **NOT** among the parties subpoenaed pursuant to this Court's discovery orders (see ECF 126).
- The seizure of an entire account balance for a single, minimally late payment is an extraordinary deviation from standard banking practices and appears to be an extension of the broader financial retaliation campaign designed to impede this litigation.

D. RESIDENTIAL VANDALISM AND INTIMIDATION (MARCH 25, 2026)

On March 25, 2026, Plaintiff's residence at 2718 Crestline Drive was subjected to vandalism and intimidation:

- Two Caucasian males rang the front doorbell.
- Plaintiff looked out of a window and observed no vehicle parked at her residence.
- Plaintiff deliberately took her time responding. Upon going to her front porch, she discovered the two men were already positioned in her yard on the side of her house.
- The men falsely represented themselves as religious evangelists; one carried a Bible.
- The men had broken a window on the side of Plaintiff's residence.
- Upon being confronted by Plaintiff, the men did not delay; they walked quickly to their vehicle, which was parked approximately two doors down from Plaintiff's home (and thus not visible from her window), and left the scene.

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- Plaintiff has obtained a police case number from the North Charleston Police Department regarding this incident.

RELEVANCE:

- This follows prior documented incidents of surveillance and intimidation (see Notice Regarding Destruction of Evidence, ECF 91, filed September 3, 2025), including the discovery of a cell phone lodged in her bedroom window (March 3, 2025) and a suspicious male observing her residence late at night (December 15, 2024).
- The escalation from surveillance to physical property damage demonstrates increasing severity and brazenness of the intimidation campaign.

E. PREPAID DEBIT CARD ACTIVATION BLOCKED

On or about March 22, 2026, Plaintiff purchased a prepaid debit card for basic financial access. Plaintiff attempted to activate the card approximately ten (10) separate times, but the activation failed on each attempt. The following day, Plaintiff asked a friend to attempt activation using the same card and information. The friend was able to successfully activate the card on the first attempt without difficulty.

RELEVANCE: While Plaintiff cannot definitively establish the mechanism of interference, the pattern of financial exclusion is unmistakable. The prepaid card was blocked specifically for Plaintiff after ten attempts, then worked immediately for a friend. This suggests electronic tracking or identity-based flagging that extends beyond traditional banking relationships, constituting further interference with Plaintiff's ability to support herself and litigate this case.

III. PATTERN OF COORDINATED OBSTRUCTION

The foregoing incidents must be viewed in context with Plaintiff's Rule 45 subpoena efforts:

TIMELINE OF EVENTS:

- October 30, 2025: Microsoft subpoena issued
- October 31, 2025: Google subpoena issued
- November 3, 2025: Honda subpoena issued
- November 4, 2025: Motorola subpoena issued
- November 4, 2025: Verizon subpoena issued ...
- February 17, 2026: Emergency Motion to Stay and Writ Petition filed in Fourth Circuit
- February 28 - March 2, 2026: False Uber reports filed
- March 7, 2026: False insurance claim filed
- March 20, 2026: Navy Federal seizes entire account
- March 22, 2026: Prepaid debit card blocked for Plaintiff (activated by friend)

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- March 24, 2026: Microsoft blocks email access
- March 25, 2026: Home vandalized

This pattern supports an inference of coordinated retaliation by or on behalf of subpoenaed third parties and other actors designed to:

1. Prevent Plaintiff from obtaining discovery.
2. Destroy Plaintiff's ability to support herself and fund litigation.
3. Deny Plaintiff access to the courts (via email blocking).
4. Intimidate Plaintiff physically.
5. Pressure Plaintiff to abandon her claims.

IV. POTENTIAL FEDERAL CRIMINAL VIOLATIONS

Plaintiff respectfully brings to the Court's attention that the foregoing conduct may constitute violations of:

18 U.S.C. § 1512 - Tampering with a witness, victim, or an informant

- Whoever knowingly uses intimidation, threatens, or corruptly persuades another person... with intent to... influence, delay, or prevent the testimony of any person in an official proceeding.

18 U.S.C. § 1513 - Retaliating against a witness, victim, or an informant

- Whoever knowingly... interferes with the lawful employment or livelihood of any person... in order to retaliate for... testifying... in an official proceeding.

18 U.S.C. § 242 - Deprivation of rights under color of law (if any state actors involved).

V. REQUESTS FOR JUDICIAL NOTICE

Plaintiff respectfully requests that this Court take notice of:

1. The pattern of escalating retaliation described herein.
2. The timing of events relative to discovery efforts and appellate filings.
3. The correlation between subpoenaed parties and subsequent acts of retaliation.
4. The extraordinary nature of the allegations (false criminal accusations, account seizure, physical intimidation).
5. The irreparable harm being inflicted upon Plaintiff.

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VI. NO REQUEST FOR IMMEDIATE SUBSTANTIVE RELIEF

Plaintiff respectfully notes that in light of the pending proceedings before the Fourth Circuit Court of Appeals (Case No. 26-1061), this Notice is filed for record purposes only. Plaintiff does not request that this Court enter new orders or modify existing orders at this time. Rather, Plaintiff seeks only to:

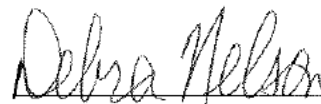
1. Preserve the record regarding ongoing misconduct.
2. Document the escalating nature of the obstruction.
3. Provide supplemental factual support for the appellate proceedings.
4. Ensure the Court is apprised of circumstances bearing on the litigation.

VII. CONCLUSION

The events described herein demonstrate that the obstruction, retaliation, and witness tampering alleged in Plaintiff's prior filings have not ceased but have dramatically escalated. The coordination between non-party subpoena recipients, the timing of events, and the severity of the conduct (destruction of livelihood, physical intimidation) support an inference of an organized effort to prevent Plaintiff from pursuing her claims in federal court.

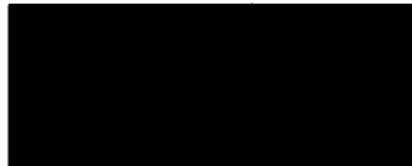
Plaintiff has filed a Supplemental Notice with the Fourth Circuit regarding these matters and will abide by any orders issued by the Court of Appeals regarding the scope of proceedings in this Court during the pendency of the writ.

Respectfully submitted 26th of March, 2026,



Debra Nelson

Plaintiff, Pro Se



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CERTIFICATE OF SERVICE

I hereby certify that on March 26, 2026, a true and correct copy of the foregoing **Notice of Ongoing Retaliatory Acts, Third-Party Obstruction, and Witness Tampering** was served via email, upon the following counsel of record:

T. Chase Samples, Esq.

Email: chase.samples@jacksonlewis.com

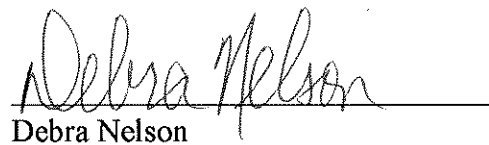
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Debra Nelson